

**बिड दस्तावेज़ / Bid Document**

| बिड विवरण / Bid Details                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                       |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| बिड बंद होने की तारीख/समय / Bid End Date/Time                                                                                                                                                                               | 16-07-2026 21:00:00                                                                                                                                                                                                                                                                                   |
| बिड खुलने की तारीख/समय / Bid Opening Date/Time                                                                                                                                                                              | 16-07-2026 21:30:00                                                                                                                                                                                                                                                                                   |
| बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)                                                                                                                                                 | 90 (Days)                                                                                                                                                                                                                                                                                             |
| मंत्रालय/राज्य का नाम / Ministry/State Name                                                                                                                                                                                 | Gujarat                                                                                                                                                                                                                                                                                               |
| विभाग का नाम / Department Name                                                                                                                                                                                              | Rural Development Department Gujarat                                                                                                                                                                                                                                                                  |
| संगठन का नाम / Organisation Name                                                                                                                                                                                            | District Rural Development Agency Dahod                                                                                                                                                                                                                                                               |
| कार्यालय का नाम / Office Name                                                                                                                                                                                               | Dahod                                                                                                                                                                                                                                                                                                 |
| शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal                                                                                                                                                      | HOD Email id : drda-sbm-dhd@gujarat.gov.in<br>Buyer Email id: tdodahod1@gmail.com                                                                                                                                                                                                                     |
| कुल मात्रा / Total Quantity                                                                                                                                                                                                 | 26                                                                                                                                                                                                                                                                                                    |
| वस्तु श्रेणी / Item Category                                                                                                                                                                                                | Camera for CCTV System (V3) (Q2) , Video Recorder for CCTV System (V2) (Q2)                                                                                                                                                                                                                           |
| वर्षों के अनुभव के लिए एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience                                                                                                                                     | Yes   Complete                                                                                                                                                                                                                                                                                        |
| टर्नओवर के लिए स्टार्टअप को छूट प्राप्त है / Startup Relaxation for Turnover                                                                                                                                                | Yes   Complete                                                                                                                                                                                                                                                                                        |
| विक्रेता से मांगे गए दस्तावेज़ / Document required from seller                                                                                                                                                              | Experience Criteria, Certificate (Requested in ATC), OEM Authorization Certificate, OEM Annual Turnover<br>*In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer |
| क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है / Do you want to show documents uploaded by bidders to all bidders participated in bid? | No                                                                                                                                                                                                                                                                                                    |
| बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या / Minimum number of bids required to disable automatic bid extension                                                                                    | 1                                                                                                                                                                                                                                                                                                     |

| बिड विवरण/Bid Details                                                                                                                                                                |                                                 |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------|
| दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / <b>Number of days for which Bid would be auto-extended</b>                                                           | 3                                               |
| ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / <b>Number of Auto Extension count</b>                                                                                                 | 1                                               |
| बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled                                                                                                                                   | Yes                                             |
| रिवर्स नीलामी योग्यता नियम/RA Qualification Rule                                                                                                                                     | 50% Lowest Priced Technically Qualified Bidders |
| बिड का प्रकार/Type of Bid                                                                                                                                                            | Two Packet Bid                                  |
| प्राथमिक उत्पाद श्रेणी/Primary product category                                                                                                                                      | Camera for CCTV System (V3)                     |
| तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation                                                    | 2 Days                                          |
| निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM) | No                                              |
| मूल्यांकन पद्धति/Evaluation Method                                                                                                                                                   | Total value wise evaluation                     |
| मध्यस्थता खंड/Arbitration Clause                                                                                                                                                     | No                                              |
| सुलह खंड/Mediation Clause                                                                                                                                                            | No                                              |

#### ईएमडी विवरण/EMD Detail

|                   |    |
|-------------------|----|
| आवश्यकता/Required | No |
|-------------------|----|

#### ईपीबीजी विवरण /ePBG Detail

|                                                                   |                     |
|-------------------------------------------------------------------|---------------------|
| एडवाइजरी बैंक/Advisory Bank                                       | State Bank of India |
| ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)                           | 5.00                |
| ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months). | 14                  |

(a).ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

#### लाभार्थी /Beneficiary :

TALUKA DEVELOPMENT OFFICER, DAHOD  
Taluka Panchayat Office, Dahod  
(Rathava Atulbhai)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

**एमआईआई खरीद वरीयता/MII Purchase Preference**

|                                            |    |
|--------------------------------------------|----|
| एमआईआई खरीद वरीयता/MII Purchase Preference | No |
|--------------------------------------------|----|

**एमएसई खरीद वरीयता/MSE Purchase Preference**

|                                                                                                                                                                                                           |     |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|
| एमएसई खरीद वरीयता/MSE Purchase Preference                                                                                                                                                                 | Yes |
| सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$           | 15  |
| सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference | 25  |

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.

2. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.

3. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within  $L-1+ 15\%$  (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

4. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

5. Reverse Auction would be conducted amongst first 50% of the technically qualified bidders arranged in the order of prices from lowest to highest. Number of sellers eligible for participating in RA would be rounded off to next higher integer value if number of technically qualified bidders is odd (e.g. if 7 bids are technically qualified, then RA will be conducted amongst L-1 to L-4). In case number of technically qualified bidders are 2 or 3, RA will

be between all without any elimination. If Buyer has chosen to split the bid amongst N sellers, then minimum N sellers would be taken to RA round. In case Primary products of only one OEM are left in contention for participation in RA based on lowest 50% bidders qualifying for RA, the number of sellers qualifying for RA would be increased to get at least products of one more OEM (directly participated or through its reseller) if available. Further, if bid(s) of any seller(s) eligible for MSE preference is / are coming within price band of 15% of Non MSE L-1 or if bid of any seller(s) eligible for Make in India preference is / are coming within price band of 20% of non MII L-1, then such MSE / Make in India seller shall also be allowed to participate in the RA process.

### Camera For CCTV System (V3) ( 24 pieces )

|              |     |
|--------------|-----|
| Bis Required | Yes |
|--------------|-----|

#### तकनीकी विशिष्टियाँ /Technical Specifications

[\\* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

| विवरण/Specification   | विशिष्टि का नाम /Specification Name                                          | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)                    |
|-----------------------|------------------------------------------------------------------------------|------------------------------------------------------------------------------------|
| Generic               | <b>PTZ Camera / Speed Dome Camera</b>                                        | No                                                                                 |
|                       | <b>Type of Camera Housing</b>                                                | Bullet Camera                                                                      |
|                       | <b>IP Camera</b>                                                             | Yes                                                                                |
|                       | <b>Camera Image Sensing capacity</b>                                         | 2MP (1920 x 1080 Pixel) or better                                                  |
|                       | <b>Maximum Frame Rates(frames per second) Supported</b>                      | 25/30, 50/60 Or higher                                                             |
|                       | <b>Number of simultaneous video Streams</b>                                  | Triple stream(Full/Compressed)                                                     |
|                       | <b>IR illumination Range(meter)</b>                                          | 15-30, 31-50, 51-70, 71-100, 101-200, 201-300, 301-400, 401-500, 501-600 Or higher |
| Construction          | <b>Installation Type/ Area of use</b>                                        | Outdoor                                                                            |
| Optics/ Performance   | <b>Lens Type</b>                                                             | Fixed                                                                              |
|                       | <b>Focal Length for Fixed / Fisheye Lens Type (mm)</b>                       | 3.6 or better                                                                      |
|                       | <b>Focal Length for Varifocal Lens Type (mm)</b>                             | NA (being fixed lens)                                                              |
|                       | <b>Optical Zoom</b>                                                          | NA(being fixed lens) Or higher                                                     |
| Network And Interface | <b>Type of network required to transmit video / Image recorded by camera</b> | Wired                                                                              |
| Storage               | <b>On Board SD Card Support</b>                                              | No                                                                                 |
|                       | <b>SD Card Capacity</b>                                                      | NA Or higher                                                                       |
| Warranty / Service    | <b>Comprehensive Warranty (Year)</b>                                         | 2, 3, 4, 5 Or higher                                                               |

| विवरण/Specification         | विशिष्टि का नाम /Specification Name                                                                                                                                                                              | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)                                                                                                                                                                                                  |
|-----------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Certification / Test Report | <b>Availability of security testing report for CCTV/VSS issued by Standardization Testing and Quality Certification (STQC) Laboratory or any other agency notified by Meity or BIS certificate indicating ER</b> | Yes (Complying to the requirement of clause 5 of S.O. 1119 (E) on the subject: Public Procurement (Preference to make in India) Order 2017-Notifying CCTV/Video Surveillance System for Security in furtherance of the order at dated 6th March, 2024 or Latest) |
|                             | <b>BIS Registration (CRS) for safety general requirements as per IS 13252 (Part 1):latest indicating ER (for CCTV Camera)</b>                                                                                    | Yes                                                                                                                                                                                                                                                              |

**परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity**

| क्र.सं./S.No. | परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer | पता/Address                                                           | मात्रा /Quantity | डिलीवरी के दिन/Delivery Days |
|---------------|---------------------------------------------------------|-----------------------------------------------------------------------|------------------|------------------------------|
| 1             | Rathava Atulbhai                                        | 389151,TALUKA PANCHAYAT OFFICE TALUKA PANCHAYAT OFFICE BUILDING DAHOD | 24               | 90                           |

**Video Recorder For CCTV System (V2) ( 2 pieces )**

|              |     |
|--------------|-----|
| Bis Required | Yes |
|--------------|-----|

**तकनीकी विशिष्टियाँ /Technical Specifications**

[\\* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

| विवरण/Specification | विशिष्टि का नाम /Specification Name           | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values) |
|---------------------|-----------------------------------------------|-----------------------------------------------------------------|
| Generic             | <b>Type of Recorder</b>                       | NVR                                                             |
| Performance         | <b>Total Number of Input Channels</b>         | 16                                                              |
|                     | <b>Maximum Recording Resolution supported</b> | 4K (3840 × 2160), 12 MP (4000 X 3000) Or higher                 |
|                     | <b>Recording Speed for all channels (fps)</b> | Upto 25, Upto 30, Upto 50, Upto 60 Or higher                    |
| STORAGE             | <b>Internal Hard Drive Interface</b>          | SATA III                                                        |

| विवरण/Specification         | विशिष्टि का नाम /Specification Name                    | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values) |
|-----------------------------|--------------------------------------------------------|-----------------------------------------------------------------|
| Buyer Specific Requirements | <b>valid BIS certificate as per IS 13252 under CRS</b> | Yes ( required)                                                 |
| WARRANTY / SERVICES         | <b>Warranty</b>                                        | 2year, 3year Or higher                                          |

**परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity**

| क्र.सं./S.No. | परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer | पता/Address                                                           | मात्रा /Quantity | डिलीवरी के दिन/Delivery Days |
|---------------|---------------------------------------------------------|-----------------------------------------------------------------------|------------------|------------------------------|
| 1             | Rathava Atulbhai                                        | 389151,TALUKA PANCHAYAT OFFICE TALUKA PANCHAYAT OFFICE BUILDING DAHOD | 2                | 90                           |

**Special terms and conditions-Version:2 effective from 18-02-2025 for category Camera for CCTV System (V3)**

1. **Note to Buyers:**

- The Central Ministries/ Departments and other government buyers as applicable shall take cognizance of "Public Procurement (Preference to Make in India) Order 2017-Notifying CCTV/ Video Surveillance dated 6<sup>th</sup> March 2024, System for Security in furtherance of the Order" 5 " while procuring The surveillance devices i.e., CCTV Cameras (Analog/ IP/ Analog Speed Dome/ IP Speed Dome) should comply with the Essential Requirements (ERs) for security prescribed by MeitY to ensure the security of the VSS / CCTV systems, as per the Appendix 'A', as amended from time to time. The security testing report for CCTV/VSS is to be issued by the Standardisation Testing and Quality Certification (STQC) Laboratory or any other agency notified by MeitY from time to time. The validity of the test report issued by STQC Lab will be three years from the date of issue of the report. These Essential Requirements (ERs) for security of CCTV Cameras/VSS system will be enforced after 3 months from the date of issuance of this Notification. The security norms for the DVR and NVR will be notified subsequently." Accordingly, compliance regarding security testing report for CCTV/VSS issued by Standardization Testing and Quality Certification (STQC) Laboratory or any other agency notified by MeitY shall be ensured before accepting/releasing CRAC of the supplied stores. **Please note that the certified product list meeting Essential Requirements (ERs) is available at-<https://www.stqc.gov.in/iot-system-certification-scheme-iotscs-0>**
- Buyers are also expected to strictly ensure compliance with the MHA advisory issued by O.M. IV-24011/22/2020-Prov-I/270 dated 26 April 2024. Where in inter alia following is stipulated.
  - All Government agencies are advised that henceforth they may procure their CCTVs and allied solutions and hardware based on the Public Procurement Order 2017 and ensure the security of CCTV systems as mentioned in the above-mentioned notifications.
  - Further, MeitY has issued an Advisory vide O.M. dated W-43/11/2021-IPHW dated 11 March 2024 on the Threat of Information through CCTV/Video Surveillance System (VSS)/Digital Video Recorders/Network Video Recorders. All Government agencies are advised to adhere to the guidelines outlined within the ambit of the Public Procurement Orders to safeguard the overall security and integrity of CCTV Cameras.
  - Additionally, further notification from relevant government department or ministry pertaining to the aforementioned PPO is to be complied with.
- Buyer is expected to apply all relevant filters against "Golden/Filterable" parameters to

clearly define their technical requirements.

- i. **For Procurement through BID/RA:** -One and only one value to be specified by the buyer against "Golden" parameters. Selecting "Any value" against GOLDEN parameters may result in incomplete specification in the bid and finally result in a vague contract. Accordingly any bid not having specific value against the GOLDEN parameters resulting in limited competition or higher cost to the exchequer or incomplete/ vague contract, the Buyer shall be solely responsible.
  - ii. **For Procurement through DIRECT/L1:**Buyers are advised to apply filters/ selections allowing all the values that are considered meeting or are better than their technical requirements. For any violation of the above, if resulting in limited competition or higher cost to the exchequer, the Buyer shall be solely responsible.
  - d. Buyer intending to buy Camera for CCTV System (V2) with optional accessories, and optional features shall use BID/RA. These optional kind of parameters are multi-select for the seller, the buyer shall stipulate/select only required accessories in their bid/RA. The required accessories as per bid/RA shall only be verified before accepting the stores. This is to ensure strict compliance of supplied stores to the bid requirement including ATC if any. However, the contract generated may have mentioned accessories other than the bid/RA requirement due to the fact that the contract gets generated based on the catalog uploaded by the OEM/seller. This type of optional parameter is to enable the seller without creating multiple catalogs for given base models having capabilities to be upgraded.
  - e. Direct/L1 procurement with a selection of optional accessories will not be covered in supply through their names/ offer may be appearing in the contract but seller/supplier do not supply the same being optional and the buyer has not exercised their right to choose by specifying the same in bid/RA.
  - f. Buyer shall also refer to GTC Clause 4. xiii.(w). The ATC / additional specification if any added by the buyer shall not be contradictory to the GeM category specifications / technical particulars (TP).
  - g. Buyer/ consignee shall verify all the parameters/ specification including the specification which are to be as per the OEM brochure before issuing CRAC.
  - h. The consignee is also required to verify the mandatory (CRS) BIS registration of the supplied stores to the IS 13252 Part 1 (2010) before accepting/ CRAC.
2. **Note to Sellers:** -
- a. Seller may refer to GTC and ensure strict compliance of the uploaded/offered product which shall be in line with their model having the claimed specifications or better.
  - b. In case the seller's declared values are contradictory to the specifications provided elsewhere in the TP; the specification claimed in the TP shall supersede the seller's declared values.
  - c. Also, the same model shall not be uploaded across catalogs with unreasonable/ contradictory offerings.
  - d. In case any discrepancy is observed in the offered/ uploaded products, the OEM dashboard of the respective Brand may be removed, and the account shall be suspended as per IM policy.

### **Special terms and conditions-Version:1 effective from 09-09-2024 for category Video Recorder for CCTV System (V2)**

#### **1. Note to Buyers:**

The Central Ministries/ Departments and other government buyers, as applicable, shall note that this category is covered under Scheme - II (Compulsory Registration Scheme) of BIS (Bureau of Indian Standards).

Compulsory registration of goods / articles in this category shall conform to IS 13252 (Part - 1) and shall bear the "Standard Mark" under a license from Bureau of Indian Standards as per Scheme-II of Schedule-II of Bureau of Indian Standards(Conformity Assessment) Regulations,2018.

Buyer shall verify and confirm compliance with the applicable BIS order during the procurement and fulfilment process.

#### **Note to Sellers:**

Sellers shall offer and supply products conforming to the corresponding Indian Standard and mandatorily registration as per Scheme-2 of BIS.

Non-compliance shall result in action as per GeM IM policy.

Buyers and sellers may refer to the relevant S.O at <https://www.bis.gov.in/product-certification/products-under-compulsory-certification/scheme-ii-registration-scheme/>

## क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/**Buyer Added Bid Specific Terms and Conditions**

### 1. **Generic**

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be  $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$ , subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

### 2. **Forms of EMD and PBG**

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

Taluka Panchayat Office, Dahod  
payable at  
9000

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

### 3. **Buyer Added Bid Specific ATC**

Buyer uploaded ATC document [Click here to view the file.](#)

## अस्वीकरण/**Disclaimer**

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.

8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

**All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.**

**For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.**

**The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:**

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

**All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.**

**This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.**

**However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.**

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा। In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in

accordance with the laws.

---धन्यवाद/Thank You---